

Brannock Aviation Advisory

MEMORANDUM

To: Frontier Airlines, Office of the General Counsel
From: Airline Practice, Brannock Aviation Advisory
Subject: Frontier's 2025 exposure under the chronic delay rule, 14 CFR 399.81
Prepared under: Practice Standard RS-4 v4.2

No Frontier flight was chronically delayed for more than four consecutive months in 2025, so DOT could not cite any of them, and we reject both of the views now circulating: the associate's count of listings is not a count of consecutive months, and the dashboard's fifteen-minute threshold is not the rule's.

The associate's working sheet records 337 Frontier flight-months on BTS's 2025 monthly chronic-delay lists. Our own replay finds 333 chronically delayed flight-months across 168 markets. The two figures are close and they are not the same thing: the sheet counts rows BTS published for individual flight numbers, while ours counts months in which a flight, as the rule defines one, was chronically delayed. Neither is a count of violations. The gap between a count of chronic months and a count of citable flights is most of what follows.

Can DOT cite any of our flights?

No. Under 399.81(c)(4) the violation is holding out a chronically delayed flight for more than four consecutive one-month periods, so a flight becomes citable in its fifth consecutive chronic month. Those 333 chronic flight-months sit inside 582 flight-months of service that was chronic at some point in the year, and they are spread thin: the longest unbroken run any single flight reached was four months. Nothing reached five, in any market, in any part of the year, and both four-month runs sit well inside it, so no run is being cut short at January or December. The citable column of `exposure_register.csv` reads no on every row.

Flights to watch, in order of passengers

#	Flight	Market	Chronic months	Passengers	Extra late arrivals
1	4818	ATL-JFK	2025-05 to 2025-08	111,871	13
2	4602	ATL-EWR	2025-04 to 2025-07	98,799	2

The operations behind those rates, month by month. The last row of each block is the month that ended the run, and the margin by which it ended:

Flight	Month	Operations	Late arrivals	Late %
4818	2025-05	31	17	54.8%
4818	2025-06	30	20	66.7%
4818	2025-07	31	18	58.1%
4818	2025-08	31	17	54.8%
4818	2025-09	30	3	10.0% (needed 16; 13 short)
4602	2025-04	30	20	66.7%
4602	2025-05	21	17	81.0%
4602	2025-06	30	18	60.0%
4602	2025-07	31	25	80.6%
4602	2025-08	31	14	45.2% (needed 16; 2 short)

ATL-JFK, flight 4818, carried 111,871 passengers. It was chronically delayed from 2025-05 to 2025-08 and then fell well away: in 2025-09 it operated 30 times with only 3 late arrivals, 10.0%, against the 16 needed to be chronic again. 13 more late arrivals that month would have made it citable.

ATL-EWR, flight 4602, carried 98,799 passengers and came much closer. After four chronic months to 2025-07 it operated 31 times in 2025-08 with 14 late arrivals, 45.2%, against the 16 needed. 2 more late arrivals and this flight would have been citable. On operational grounds it is the one we would retime first. The ranking above stays by passengers, as RS-4 requires.

Does our replay return everything the standard checks it against?

Yes. RS-4 section 2 admits a replay only if it returns every flight DOT cites in the JetBlue order, with the same consecutive months and the same operation counts. Run on the BTS on-time files for those months, our replay returns all four flights, all four spans and all four operation counts:

Flight	Market	Months in the order	Run	DOT operations	Replay
2585	JFK-RDU	2022-06 to 2022-10	5	31	returned
1802	FLL-JFK	2023-06 to 2023-10	5	30	returned
384	MCO-JFK	2023-06 to 2023-10	5	27	returned
460	FLL-BDL	2023-06 to 2023-11	6	57	returned

There is no miss; the miss list is empty. On the same months the replay also returns FLL-BOS and MCO-LGA as chronically delayed beyond four consecutive months. DOT did not charge those flights in the order. That is not a miss and not a discrepancy. A consent order disposes of what the Department chose to pursue and is not an audit of the whole schedule, so a correct method will generally find more than the order charges. We name them because RS-4 section 2.3 requires it.

The two views already circulating

The associate's working sheet. Carried through to a conclusion it reports no citable flight, which is our answer, but it reaches it by a route that does not hold and it ranks the exposure differently. Its first row is ATL-JFK flight 4818, which appears on 5 of the twelve lists: months 05, 06, 07, 08, 12. Read as five months of exposure, that flight looks citable. It is not. Four of the five listings run consecutively from May to August; the fifth is December, four months clear of the run and connected to nothing. On our replay ATL-JFK flight 4818 is a flight to watch with a four-month run, 13 late arrivals in 2025-09 short of citable, and it is first on our watch list on passengers rather than on listings. The sheet counts listings; the rule counts consecutive months.

The unit differs too. BTS lists a flight number at a scheduled departure time, while 399.81(c)(3) treats as one flight all of a carrier's flights in a market whose scheduled departures fall within thirty minutes of the most frequent one. The sheet's 218 flight-and-market rows are not the rule's flights, so their months cannot be read off as the rule's consecutive months.

The monitoring dashboard export. The dashboard keys off ArrDel15, the BTS field that flags an arrival fifteen or more minutes late. Carried through it reports 4 flights as exposed: ATL-EWR, ATL-LGA, LAX-ATL, PHL-SJU. That is four flights away from our answer and in the wrong direction, reporting exposure where the rule finds none. The rule's threshold is more than thirty minutes, so the dashboard is measuring a weaker condition that a great many flights meet. Only one of its four, ATL-EWR, appears on our watch list at all. The export is still useful for schedule reliability work; it is not evidence of exposure under 399.81.

Basis

Computed from the BTS Reporting Carrier On-Time Performance files for Frontier for each month of 2025, and for JetBlue for the months the order covers, as supplied in this folder. Passengers are the T-100 Domestic Segment PASSENGERS field for the origin-to-destination segment, January to December 2025, per RS-4 section 3.2. Percentages are to one decimal place, counts and passengers whole numbers, months YYYY-MM. Flight-month detail is in exposure_register.csv; the year is drawn in

chronic_delay_timeline.png. This memo addresses citability under 399.81 only, and a flight to watch carries no finding of violation.

No other conclusion survives the standard: the only method that returns DOT's four flights with their operation counts is the one that puts Frontier's longest run at four months.